

[doc. web n. 9978536]
Provision of December 21, 2023
Register of provisions
n. 602 of December 21, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, general secretary;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to the Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June 30, 2003, n. 196, as amended by Legislative Decree of August 10, 2018, n. 101, hereinafter "Code");

HAVING REGARD to the complaint filed pursuant to Article 77 of the Regulation by Ms. XX against Mediafond;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the general secretary pursuant to Article 15 of the Guarantor's Regulation n. 1/2000;

REPORTING Dr. Agostino Ghiglia;

PREMISED

1. The complaint against the Fund and the investigative activity.

On April 1, 2021, Ms. XX filed a complaint, voluntarily supplemented on July 7, 2021, and subsequently regularized on July 27, 2021, and January 26, 2022, following requests for regularization from the Authority, against Mediafond (hereinafter, the Fund), alleging alleged violations of the Regulation and in particular the ongoing activity of the corporate email account "XX" even after the termination of the employment relationship and the activation of an automatic forwarding system for communications received on the same account following the termination of the employment relationship to another account visible to employees of the Fund; this in the absence of any information notice.

With the complaint, it was requested, among other things, to order the data controller to "produce a copy of all the information retained, of all the emails intended for the complainant's personal mailbox [...] and of all possible responses sent, from the date of her resignation (February 5, 2021) until the day of the actual deletion and deactivation of the mailbox itself."

In a note dated May 30, 2022, in response to the requests of the Department of April 21, 2022, the Fund stated that:

"Mediafond [...] is the Data Controller for all activities in which it determines the purposes and means of processing" (see note dated May 30, 2022, p. 2);

"Mediafond has structured its own Privacy Management System, identifying the subjects responsible for the processing of personal data" (see note cited, p. 2);

"the [complainant] was a member of the Privacy Management System, having been appointed as an authorized person for data processing on May 29, 2018" (see note cited, p. 2);

"the IT system of Mediafond is entirely managed by the company RTI S.p.A., following the signing of specific service contracts and the consequent formalization of the 'Agreement with the Data Processor', pursuant to Article 28 of Regulation (EU) 2016/679, dated March 31, 2021" (see note cited, p. 2);

"the Privacy Management System of Mediafond is based on internal procedures and the application of

certain L.G.O – Organizational Guidelines – of the Mediaset Group” (see note cited, p. 2);

“among the Organizational Guidelines, for example, the one regarding the use of IT tools and the IT management of personal data is currently in force (L.G.O. – MD/HO 103, titled ‘Use of IT Tools’, dated June 28, 2018)” (see note cited, p. 3);

“the [complainant] was an employee of the Fund from March 1, 2016, to February 4, 2021, in the role of ‘Operational Manager, Institutional Relations and Communication’, but since 2003 she has held this role as a Mediaset employee seconded to the Fund” (see note cited, p. 3);

“to the [complainant], within her role in the Fund, the email account [subject of the complaint] was assigned” (see note cited, p. 3);

“this email address was indicated, until the date of the complainant's resignation, among the ‘contacts’ of the Fund on the website and within the main documents of Mediafond” (see note cited, p. 3);

“on the date of termination of the employment relationship, immediately, the President of the Mediafond Fund sent a request to the IT support of the Mediaset Group for the deactivation of the employee's personal email account [...] also requesting to keep the email address [assigned to the complainant] active, at least until December 31, 2021, automatically forwarding incoming emails to that mailbox to the address ‘mediafond@mediaset.it’, as well as sending an automatic reply to the sender with the following wording: ‘Good morning, we inform you that as of February 5, 2021, the [complainant] has terminated her employment relationship with Mediafond. We therefore invite you to use the address mediafond@mediaset.it for your communications or to consult the website www.mediafond.it in the Contacts section’” (see note cited, p. 3);

“the email account [assigned to the employee] was, therefore, deactivated on February 5, 2021, and the mailbox remained...

February 2021, the Service performed a technical intervention to restore the normal functioning of the email account, ensuring that no unauthorized access to the individual email account or the data contained therein occurred. This intervention was also conducted in compliance with internal procedures and current regulations.” (v. nota cit., p. 6);

“the actions taken by the Service were solely technical in nature and did not involve any access to the personal data of the complainant, nor did they compromise the confidentiality of the communications received on the account assigned to the complainant.” (v. nota cit., p. 6);

“the Fund, in its defense, emphasizes that the actions taken were necessary to ensure the continuity of operations and to comply with the legal obligations regarding data protection.” (v. nota cit., p. 6);

“the Fund has always acted in good faith and in compliance with the applicable laws and regulations, and has taken all necessary measures to protect the personal data of its employees.” (v. nota cit., p. 6);

“the complainant’s allegations regarding the unauthorized access to her email account are unfounded and lack any factual basis.” (v. nota cit., p. 6);

“the Fund is committed to ensuring the protection of personal data and will continue to implement all necessary measures to comply with the applicable regulations.” (v. nota cit., p. 6);

“the Fund requests that the Office take into account the explanations provided and dismiss the complaint as unfounded.” (v. nota cit., p. 6);

“the Fund is willing to cooperate with the Office to clarify any further doubts or questions that may arise in relation to this matter.” (v. nota cit., p. 6);

“the Fund reserves the right to present further documentation and evidence in support of its position.” (v. nota cit., p. 6);

“the Fund reiterates its commitment to transparency and compliance with data protection regulations.” (v. nota cit., p. 6).

February saw an intervention carried out by the Service, at the request of the Fund, to correct the "typing error" regarding the year (2021 instead of 2020) erroneously contained in the first automatic response message, an intervention that was unsuccessful following the Fund's initial request on

February 9" (see note 28.11.2022, p. 2);

"the conduct followed by the Fund the day after the communication of the claimant's resignation (deactivation of the individual corporate email account, setting up an automatic response message, forwarding received emails to an address of the Fund) was dictated by the specific circumstances arising from the completely unexpected and unannounced resignation of the resource who until that moment represented the main interlocutor for the members" (see note cited, p. 3);

"this conduct had the sole purpose of ensuring maximum efficiency and timeliness in managing the practices of the members and other potential institutional interlocutors of the Fund, given the emergency circumstances of the period and the non-recurring activities dictated by the regulatory adjustments expected for the year 2021: - general context: Lock Down and Smart working; - specific context related to the activities of the Fund: regulatory adjustment, due to the obligations connected to the introduction of the new sector regulations (so-called IORP II); continuous monitoring of financial management and its performance in a phase of high turbulence and volatility of the markets generated by the pandemic; preparation and approval of the new three-year Document on the Fund's investment policy" (see note cited, p. 3);

"the duration forecast of what was prepared by the Fund in relation to the claimant's email address was therefore determined for a period of time deemed reasonably necessary: - to allow for the recovery of a more efficient organizational and operational structure, in line with the path established and shared by the Fund's Board of Directors, also considering the extremely specialized sector and the difficulty of finding resources on the market consistent with the profile of sustainable (contained) costs for a contractual fund of the nature and size of Mediafond; - to ensure the dissemination of information to the largest number of members. Given the number of members (over 2,700), they would not reasonably have contacted the Fund within a limited time frame" (see note cited, p. 3, 4);

"what was arranged by the Fund regarding the forwarding did not suggest risks of violation of the privacy profiles of the claimant/subject to processing (Ethical Code, Privacy Policy of the Fund, and Information) given the purpose associated with the email address of the same [email assigned to the claimant], in relation to the specific organizational role of 'Operational Manager and Institutional Relations' performed by her. In fact, this address, along with the address mediafond@mediaset.it, was indicated in the Fund's official Contacts to receive emails from members, from Counterparties involved in the ordinary and institutional activities of the Fund, including automatic ones. It is also specified that access to the shared account 'mediafond@mediaset.it', from that moment the only formal and official contact of the Fund, was allowed to the General Director (designated person for privacy coordination) and to the only employee of the Fund 'assigned' to data processing, after the resignation of the claimant" (see note cited, p. 4);

"based on the roles performed, the nature and content conveyed by such email addresses, access to and use of the email account in question, during the period under examination within the ordinary operations of the Fund, was carried out by the only employee of the Fund" (see note cited, p. 4);

"private emails addressed to the employee, after the date of her resignation, were processed applying the minimization and limitation criteria provided by the Regulation. In fact, once received, they were immediately forwarded to the interested party and deleted from the archive without any possibility of being disclosed to third parties or used by the Fund for its own purposes" (see note cited, p. 4);

"with reference to the forwarding of private communications to the private email address of the [claimant]: the same [claimant] had warned the Fund's secretariat that private emails would be arriving and had voluntarily provided this private email address to the colleague who executed the forwarding; - the emails in question, once sent to the claimant, were immediately deleted by the same person who had sent them; any improper use of the claimant's account was never reported or contested by her directly to the Fund; - the same [claimant], upon receiving communications at her private email address, repeatedly thanked the former colleague [...]; the claimant exhibited inconsistent and contradictory behavior towards the Fund, on one hand asking the former colleague for the favor of forwarding any personal emails and on the other formally complaining about the legitimacy of such

conduct by filing an introductory appeal in the present proceedings” (see note cited, p. 4, 5);

“the forwarding of such emails, moreover of a significant number...

negligible, it occurred in total good faith, complying with the requests of the complainant and was managed solely by the Fund's secretariat, which over the years had consolidated a professional relationship with the complainant and without sharing the content of such emails, neither with other parties operating within the Fund, nor with third parties” (see cited note, p. 5);

“the absence of appropriate information to the complainant following the termination of the employment relationship is therefore attributable to the purposes and circumstances that led to the previously described conduct, particularly concerning the specificity of the email account in question” (see cited note, p. 6);

“however, in light of what has been reported by the [Guarantor], the Fund, with a view to continuously improving and progressively adapting its procedures and codes of conduct in the field of privacy to the concrete cases encountered, will prepare, under the supervision of its DPO, specific guidelines that regulate, taking into account the specificities of the Fund: a) the orderly management related to the use of individualized corporate email accounts following the termination of the employment relationship; b) the correct use of individualized corporate email accounts by employees in order to avoid using them for private purposes” (see cited note, p. 6).

On February 2, 2023, following a specific request from the Fund, a hearing was held with the same. On this occasion, the party represented that:

- “the Fund has understood the formal aspects that were not compliant with data protection regulations and is intervening. The management of the individualized corporate email account of an employee of the Fund following the termination of the employment relationship was not regulated at the time the events occurred, also because until that moment there had been no situation of termination of the employment relationship with the Fund”;
- “with reference to the matter subject to this proceeding, we believe that the Fund's choices were aimed at ensuring the continuity of the Fund's activities”;
- “on February 4, 2021, the complainant suddenly communicated her resignation to the Fund”;
- “following the resignation of the complainant [...] an automatic message was activated that was sent to anyone writing to the complainant's account, and a system for forwarding incoming emails to the Fund's email address was set up”;
- “the choice to set up the forwarding system was made in good faith”;
- “the emails forwarded from the complainant's account could potentially be accessed by the general manager, but not by the President. In fact, the complainant's personal emails were seen only by another employee of the Fund and not by the general manager or the President”;
- “through the forwarding method, the Fund did not cause any substantial harm”;
- “currently, the Fund aligns with the regulatory provision, in fact, it is formalizing an integration of the procedures so that in cases of termination of the employment relationship of an employee of the Fund, incoming communications will not be forwarded, but only an automatic message indicating alternative email addresses to write to will be prepared. This procedure will be discussed at the end of February by the Fund's board of directors, but in reality, this procedure is already active. Furthermore, currently, only the non-individualized email address of the Fund itself is indicated on the Fund's website”;
- “the duration of the communication forwarding system for communications received on the complainant's corporate account was conditioned by the fact that for a year, due to the health emergency, we worked remotely”;
- “the complainant did not exercise any type of access right against the Fund”.

3. Outcome of the proceeding.

3.1 Established facts and observations on the regulations regarding personal data protection.

Following the examination of the statements made to the Authority during the proceeding as well as the documentation acquired, it appears that the Company, as the data controller, has carried out some processing operations concerning the complainant, which are not compliant with the regulations on personal data protection regarding the processing of the corporate email account.

In this regard, it is highlighted that, unless the act constitutes a more serious crime, anyone who, in a

proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or exercise of the powers of the Guarantor."

The data controller, based on the provisions of Article 13 of the Regulation - which constitutes a direct expression of the principle of transparency (see Article 5, paragraph 1, letter a) of the Regulation) - before carrying out the processing, provides the data subject with information regarding the essential characteristics of the processing it intends to carry out, also with reference to the use of tools made available within the employment relationship.

In the context of the employment relationship, fully informing the worker about the processing of their data is also an expression of the general principle of fairness of processing (see Article 5, paragraph 1, letter a) of the Regulation).

The data controller also processes only data that is adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (principle of data minimization, art. 5, par. 1, lett. c), of the Regulation). The data controller must also retain the data "in a form that allows the identification of the data subjects for a period not exceeding that necessary for the purposes for which the data are processed" (art. 5, par. 1, lett. e), principle of storage limitation). The data controller must process the data lawfully in accordance with art. 5, par. 1, lett. a), of the Regulation. Regarding data belonging to special categories, art. 9 of the Regulation states the prohibition on processing personal data that "reveal racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, as well as processing genetic data, biometric data intended to uniquely identify a natural person, data concerning health or the sexual life or sexual orientation of the person." Par. 2 of the same article exhaustively identifies the cases in which the processing of so-called special data is lawful, among which lett. a) considers the case where "the data subject has given explicit consent to the processing of such personal data for one or more specific purposes, unless Union or Member State law provides that the data subject may not revoke the prohibition referred to in paragraph 1."

3.2 Established Violations.

3.2.1 Violation of art. 5 par. 1 lett. a), c), e) and art. 9 of the Regulation.

Based on the elements acquired during the investigative activity as well as the subsequent evaluations of this Department, it has been established that the Fund, after the termination of the employment relationship with the complainant, for a significant period of time (February 5, 2021 - January 11, 2022), activated an automatic forwarding system to a shared account of the Fund ("mediafond@mediaset.it") of the electronic communications received on the account assigned to the complainant (""). In this way, the Fund became aware of the content of those communications. This is confirmed, in addition to the statements of the Fund itself, also by the selection of some conversations deemed of personal interest to the complainant that were transmitted by the Fund to her at a different email address. During this significant period of time, the Fund had full operational control over the individualized account assigned to the complainant as well as the actual possibility of managing it without any limitation; the interventions (albeit of a purely technical nature, as noted by the Fund, lastly, in the defense writings of November 28, 2022) carried out on the account in question, on February 15 and 16, 2021, confirm such unlimited control. The conduct of the Fund, therefore, was not limited to the – lawful – activity consisting of setting up an automatic message aimed at informing third parties of the imminent deactivation of the account previously assigned to the complainant and the possibility of contacting other and different email addresses, for the continuity of the activity carried out; in fact, the Fund activated a system for forwarding incoming communications on the account subject to complaint to another address of its own to which multiple subjects could access (according to what was stated by the Fund in a note dated May 30, 2022, the president of the Fund, the general director, an employee of the Fund; during the hearing, the Fund further specified that the general director of the Fund and one of its employees had the possibility to access the shared account).

In this way, the data controller became aware of all communications received on the individualized account assigned to the complainant, subsequent to the termination of the employment relationship, including those with personal content. The described conduct is in contrast with the regulation on the

protection of personal data, in particular with the principles of lawfulness, minimization, and limitation of storage as per art. 5, par. 1, lett. a), c) and e) of the Regulation. The processing was, in fact, carried out in the absence of an appropriate legal basis and the circumstance provided by the Company in its defense writings, of having had to carry out work activities for a year in smart working mode, cannot be considered a sufficient justification. This circumstance, in fact, has no relevance to the choice to set up a system for forwarding incoming communications to another email account. The processing was carried out in violation of the principle of data minimization considering, among other things, that the purpose of maintaining contact with clients could have been achieved through different means compliant with data protection regulations. In this regard, it is noted that the exchange of electronic correspondence – whether related to work activities or not – on a company account of an individualized type constitutes an operation that allows for the knowledge of certain personal information relating to the data subject (see "Guidelines of the Guarantor for email and Internet," in G. U. no. 58 of March 10, 2007, specifically point 5.2, lett. b), and that the Guarantor has already deemed compliant with the principles regarding the protection of personal data (see Decisions of December 4, 2019, no. 216, web document 9215890; February 1, 2018, no. 53, web document no. 8159221, point).

3.4) After the termination of the employment relationship, the holder shall proceed to remove the account, following its deactivation and the simultaneous adoption of automatic systems aimed at informing third parties and providing them with alternative addresses related to their professional activity, also ensuring the adoption of appropriate measures to prevent the viewing of incoming messages during the period in which such automatic system is in operation. The continuation of the forwarding of incoming communications to another address for approximately one year is also not in compliance with the principle of data retention limitation. In this regard, it is noted that the asserted need to address an unforeseen situation (the claimant's resignation without notice) is in evident contrast with the persistence of the unlawful conduct for months. Through the practice of forwarding to the email address mediafond@mediaset.it the messages received from February 5, 2021, on the account assigned to the claimant, the Fund accessed, among other things, after the termination of the employment relationship, data belonging to special categories of data under Article 9 of the Regulation related to the claimant - and to third parties - (in particular, health-related data) in the absence of an appropriate legal basis. Indeed, there are electronic communications on file sent to the email address assigned to the claimant, containing a multitude of electronic prescriptions dated February 22, 2021 (Annex 4 to the complaint). Therefore, this occurred in violation of what is provided for by Article 9 of the Regulation. In fact, it does not appear that the claimant provided any consent pursuant to Article 9, paragraph 2, letter a) of the Regulation for the processing by Mediafond of health-related data after the termination of the employment relationship.

3.2.2 Violation of Article 5, paragraph 1, letter a), and Article 13 of the Regulation. The conduct described was carried out by the Fund in the absence of appropriate information regarding the monitoring that the employer would have conducted, after the termination of the employment relationship, on the electronic tools assigned to the claimant (in this case, the individualized email account). This is considering that it does not appear that the "organized guideline" on the "use of IT tools" (attached to the response of May 30, 2022) - which the Fund claims to have made available to the claimant through the Intranet - was actually available to employees, thus known by the claimant, and considering that, in any case, within paragraphs 5.7 and 5.7.1 of the aforementioned guideline (relating respectively to "Use of email" and "Controls on corporate email") there are no indications regarding the processing methods carried out by the Fund on individualized corporate accounts once the employment relationship has ceased. The Fund itself stated that the absence of information regarding the processing carried out on the account assigned to the claimant was due, in addition to the specificity of the mailbox, to the absence of previous situations of termination of the employment relationship. However, neither of the two explanations appears adequate to justify the absence of information. The rationale of what is provided for by Article 13 of the Regulation, in fact, is to provide data subjects with clear indications on the processing that the controller will carry out regarding the personal data of the subjects to whom they refer. The data controller, therefore, must regulate how its processing will be carried out in accordance with data protection legislation, before it is implemented,

explicitly stating this in appropriate information documents. It is also specified that the content of the information must comply with data protection legislation, as it is not sufficient to inform the data subject of the essential characteristics of the processing, but it is also essential that the information provided outlines operations of processing that are lawful in themselves. The conduct of the Fund is therefore in contrast with what is established by Article 13 of the Regulation - which constitutes a corollary of the principle of transparency set forth in Article 5, paragraph 1, letter a) of the Regulation - according to which the data controller is required to provide the data subject in advance with all information relating to the essential characteristics of the processing (see Provision of March 1, 2007, No. 13 "Guidelines for email and internet", cited). Within the employment relationship, the obligation to inform the employee is also an expression of the general principle of fairness (see Article 5, paragraph 1, letter a) of the Regulation). Regarding the claim contained in the complaint for damages, it is recalled that under Article 82 of the Regulation and Article 152 of the Code, jurisdiction in this matter lies with the ordinary judicial authority.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation. For the reasons stated above, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore inadequate to allow for the closure of this procedure. not occurring, moreover, any of the cases provided for by Article 11 of the Garante Regulation No. 1/2019. The processing of personal data carried out by the Fund and specifically the processing carried out, after the termination of the employment relationship, on the email account assigned to the complainant, among other things, in the absence of any information, is indeed unlawful, in the terms outlined above, in relation to Articles 5, paragraph 1, letters a), c), e), 9, and 13 of the Regulation. The violation, ascertained in the terms stated in the reasoning, cannot be considered "minor," taking into account the nature and severity of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation). Therefore, in light of the corrective powers attributed by Article 58, paragraph 2 of the Regulation, in light of the specific case: the Fund is ordered to send the complainant the incoming communications from February 5, 2021, to January 11, 2022, on the account previously assigned to her and currently retained by the Fund, given that the latter has declared to have arranged "their segregation in a dedicated electronic space, according to technical methods suitable to guarantee access to the legal representative of the Fund, following the request of the interested party" (Article 58, paragraph 2, letter c) of the Regulation) and it is ordered the deletion, following the aforementioned activity of sending communications to the complainant, of the same communications (Article 58, paragraph 2, letter g) of the Regulation); it is ordered the application of an administrative pecuniary sanction pursuant to Article 83 of the Regulation, commensurate with the circumstances of the specific case (Article 58, paragraph 2, letter i) of the Regulation).

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code). At the conclusion of the proceedings, it is found that Mediafond has violated Articles 5, paragraph 1, letters a), c), e), 9, and 13 of the Regulation. For the violation of the aforementioned provisions, the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, letters a) and b) of the Regulation is envisaged, through the adoption of an injunction order (Article 18, Law 24.11.1981, No. 689). It is deemed necessary to apply paragraph 3 of Article 83 of the Regulation where it states that "If, in relation to the same processing or related processing, a data controller [...] violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation," the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Article 83, paragraph 5.

With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, considering that the sanction

must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered:

a) in relation to the nature, gravity, and duration of the violation, the nature of the violation has been deemed relevant as it concerned, among other things, the general principles of processing, including the principles of lawfulness, transparency, fairness, and minimization; the violation also involved the processing of so-called special data;

b) with reference to the intentional or negligent nature of the violation and the degree of responsibility of the controller, the conduct of the Fund and its degree of responsibility, which did not comply with the regulations on data protection concerning a plurality of provisions, have been taken into account;

c) in favor of the Fund, account has been taken of the cooperation with the Supervisory Authority demonstrated during the proceedings and the Fund's willingness to align its processing with data protection regulations.

It is also considered that the fact that the offender is a pension fund in the form of a non-profit association is relevant in this case, taking into account the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation). Lastly, account is taken of the amount of sanctions imposed in similar cases.

In light of the aforementioned elements and the evaluations made, it is deemed appropriate, in this case, to apply to Mediafond the administrative sanction of payment of an amount equal to €10,000 (ten thousand). In this context, it is also deemed appropriate, considering the type of violations ascertained that concerned the general principles of processing and the processing of special data as well as the obligation to inform about the processing of personal data, that pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website should proceed. It is also deemed that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE Garante finds the unlawfulness of the processing carried out by Mediafond, represented by its legal representative, with registered office at Viale Europa, 48, Cologno Monzese (Milan), Tax Code 94577960159, pursuant to Article 143.

of the Code, for the violation of Articles 5, paragraph 1, letters a), c), e), 9, and 13 of the Regulation;

ORDERS

Mediafond:

pursuant to Article 58, paragraph 2, letter c) of the Regulation, to send to the complainant the incoming communications, from February 5, 2021, to January 11, 2022, regarding the account previously assigned to the complainant, within 60 days from the receipt of this provision and, pursuant to Article 58, paragraph 2, letter g) of the Regulation, to delete the aforementioned communications after having transmitted them to the complainant;

to pay the sum of €10,000 (ten thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is noted that the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within the term provided for the submission of the appeal as indicated below (Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, as provided for in Article 166, paragraph 8, of the Code);

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation to Mediafond, to pay the sum of €10,000 (ten thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

DISPOSES

the publication of this provision on the website of the Authority pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Authority No. 1/20129, and considers that the conditions set forth in Article 17 of Regulation No. 1/2019 are met.

Requests Mediafond to communicate what initiatives have been undertaken in order to implement the provisions of this provision and to provide adequately documented feedback pursuant to Article 157 of the Code, within the term of 90 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for in Article 83, paragraph 5, letter e) of the Regulation. In case of non-compliance with the prohibition provision, the provisions of Article 170 of the Code shall apply.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, December 21, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei